

	2022-01256174	The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$325,000 class action and PAGA settlement. Subject to defendant's submission of the declaration described below, the court grants the motion as follows: \$5,000 for enhancement award to plaintiff (not to exceed); \$97,500 for attorneys' fees (not to exceed); \$20,000 for attorneys' costs (not to exceed); \$6,950 for settlement administration fees (not to exceed); and \$20,000 total PAGA penalties (\$15,000 to LWDA). In the April 30, 2026 order (ROA 181), the court asked (i) whether the plaintiffs in the two cases identified in the Mojarro Declaration (ROA 168) are putative class members and/or aggrieved employees in this case, and (ii) how the settlement in this case will affect the plaintiffs' claims in the two cases identified in the Mojarro Declaration. ROA 181 (No. 5). These issues have not been addressed. Defendant's counsel is ordered to file and serve <u>by September 24, 2026</u> a declaration answering these questions. The final approval hearing is scheduled for <u>February 25, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
3	Clarke v. Purpose Driven Transport Inc. 2024-01421145	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$163,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Pursuant to the court's April 16, 2026 order (ROA 74), plaintiff has provided the estimated average, high and low class payments, and the estimated average, high and low PAGA payments. Lawrence Decl. (ROA 89) ¶¶ 24-25. The parties state that since the time of the last hearing they renegotiated the class period and PAGA period. Supp. Brief (ROA 81) at 3:16-23; Lloyd Decl. (ROA 83) ¶ 5. What class period and PAGA period did Lawrence use to calculate the estimated average high and low individual class and PAGA payments? 2. The Lawrence Declaration (ROA 89) states in paragraph 23 that the Net Settlement Amount is \$66,200 and in paragraph 24 that the Net Settlement Amount is

		\$69,200. Which figure is correct, and which figure did Lawrence use to calculate the estimated average high and low individual class and PAGA payments? 3. In the April 6, 2026 order (ROA 74), the court asked why defendant is paying the settlement in installments. Settlement Agreement ¶ 4.3; <i>see also id.</i> ¶ 12.18. The court stated that if this is due to defendant's financial condition, admissible evidence of defendant's financial condition must be provided, including appropriate financial documents such as balance sheets, cash flow statements, and profit and loss statements. The parties have submitted a declaration from the mediator (ROA 87) and a declaration from Ron Petz (ROA 93). Neither declaration explains defendant's specific financial condition or why the installment plan set forth in the settlement agreement is appropriate and reasonable in light of defendant's financial condition. The Petz Declaration lists various documents without any explanation of what the documents purport to show regarding defendant's financial condition. In addition, none of the exhibits to the Petz Declaration (ROA 93) was filed with the court. Plaintiff states the exhibits will be lodged with the court pursuant to California Rule of Court 3.1302(b) (Supp Brief at 2 n.1), but the court file does not contain any indication that occurred. Plaintiff apparently delivered a multi-page document to Department CX105. The caption page of that document states it is submitted "conditionally under seal/for in-camera review only." As stated above, the court file contains no indication plaintiff lodged the Petz exhibits conditionally under seal. To the extent plaintiff asks the court to review the Petz exhibits in camera, the court declines to do so, as all materials filed in support of plaintiff's motion must be part of the court file for this action. If the parties contend the Petz exhibits are confidential, the parties should have lodged a copy of the agreement conditionally under seal and filed a noticed motion to seal the documents before the September 17, 2026 hearing on this motion; if that remains the parties' position, the parties should promptly do so. 4. Plaintiff's counsel states counsel now seeks costs not to exceed \$14,000, rather than \$12,000. Exhibit G to the Supplemental Lipeles Declaration (ROA 91) states counsel has incurred \$10,971.60 in costs. In light of this, why should the not-to-exceed costs amount be increased? In addition, at final approval, counsel should submit invoices substantiating the Axiom Analytics LLC, Judicate West and Steno Agency, Inc. charges. 5. The court stated in the April 16, 2026 order that while it will not determine the amount of any enhancement
--	--	--

		award for plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. The court stated that plaintiff should address in the supplemental filing whether any such unique circumstances exist here. Plaintiff has not identified any unique circumstances. The court preliminarily finds an enhancement award not to exceed \$5,000 reasonable in this case. <u>As to the notice:</u> 6. The notice should be revised consistent with the above. 7. Why is the notice a "supplemental" notice? 8. The second all capitals, bolded statement at the top of the exclusion form should be removed as it duplicates other information on the form. 9. The second all capitals, bolded statement at the top of the objection form should be removed as it duplicates other information on the form. 10. In the fourth and fifth sentences in the third paragraph of the objection form should be removed, as they duplicate other information on the form. 11. In the second sentence of the fourth paragraph of the objection form, the phrase "and all evidence and" should be removed, as should the phrase "(including, without limitation, all briefs, written evidence, and declarations)." 12. The statement in the second part of the last sentence of the fourth paragraph of the objection form that the form must be "mailed to" the settlement administrator is inconsistent with the first part of the same sentence which states the objection form may be "emailed, or postmarked." 13. The last section of the objection form regarding whether the class member is or will be represented by an attorney should be removed. <u>As to the proposed order (ROA 91 Ex. F):</u> 14. The proposed order should be revised consistent with the above. 15. The settlement agreement and any amendments thereto should be collectively defined at the beginning of the proposed order as the "Settlement" and/or the "Settlement Agreement." One of those defined terms should then be used throughout the proposed order rather than "Settlement Agreement and Amendment." 16. As stated in the April 16, 2026 order (ROA 74 No. 44), the settlement agreement, any amendments thereto and
--	--	---

		the notice packet should be attached as exhibits to the proposed order. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>February 11, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
4	Ellerbe v. New 2025-01531044	<u>Defendant Brad New's Demurrer to First Amended Class Action Complaint</u> Defendant Brad New demurs to the five causes of action in plaintiffs Kim Ellerbe, Brittany Akal and Tiffany Washington's first amended class action complaint. Plaintiffs did not file an opposition. Defendant's demurrer is therefore sustained for the reasons stated in the demurrer and supporting brief. ROA 34. Defendant asks that his demurrer be sustained without leave to amend. A demurrer should be sustained without leave to amend if there is no reasonable probability that the complaint can be cured by amendment. <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318. The burden of proving such reasonable possibility "is squarely on the plaintiff." <i>Id.</i> As noted, plaintiffs did not file an opposition and thus have not demonstrated that any deficiencies in the first amended complaint can be cured by amendment. Defendant's demurrer is sustained without leave to amend. Defendant's Request for Judicial Notice (ROA 32) of Exhibits 1 and 4 is granted, insofar as a court may take judicial notice of the existence of a document in a court file, including the truth of results reached, but a court may not take judicial notice of the truth of hearsay statements in decisions and court files. <i>Richtek USA, Inc. v. UPI Semiconductor Corp.</i> (2015) 242 Cal.App.4h 651, 658. Defendant's Request for Judicial Notice of Exhibits 2 and 3 is denied as it is not necessary to seek judicial notice of documents in the court's file for this action. Defendant's Request for Judicial Notice of Exhibits 5,6 and 7 is denied. Defendant to give notice and to submit a proposed judgment of dismissal by September 24, 2026.